

		Defendant to give notice.
9	Business Buyers, Inc. vs. Thomas Lee Food and Cuisine, LLC	OFF CALENDAR
10	Crowe vs. Dang	TENTATIVE RULING: <u>Motion for Relief</u> Plaintiffs Lowell R. Crowe, Jr. and Tamela Crowe move for leave to file a Second Amended Complaint (SAC). Defendants Natasha Benesch and Sameer Dang oppose the motion. For the following reasons, the motion is GRANTED. Plaintiffs shall file the SAC by September 9, 2026. On September 24, 2025, the Court sustained the demurrer filed by Defendant Natasha Benesch Dang and the joinder filed by Defendant Sameer Dang to the seventh cause of action in the First Amended Complaint (FAC). (ROA 97.) The seventh cause of action was for breach of contract. While the FAC claimed to have attached as Exhibit 1 a copy of the Residential Purchase Agreement, the FAC did not contain any exhibits. Thus, the Court sustained the demurrer to that cause of action. (Id.) The September 24, 2025, minute order stated, “Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling.” Plaintiff did not timely file a Second Amended Complaint. In the meantime, other Defendants – Elite Group Property Inspection Service, Inc. and Don McMahon – moved to compel arbitration. On January 28, 2026, this Court granted the motion to compel arbitration filed by Defendants Elite Group Property Inspection Service, Inc. and Don McMahon. (ROA 130.) The Court stayed this action pending the outcome of the arbitration between Plaintiffs and Defendants Elite Group Property Inspection Service, Inc. and Don McMahon. Plaintiff now seeks leave to file a Second Amended Complaint (SAC) to address the Court’s September 24, 2025, ruling. Defendants contend that this motion is prohibited in light of the arbitration stay ordered by the Court.

Effect of Arbitration Stay

“If a court . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.)

“The purpose of the statutory stay is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved. In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective.” (*Heritage Provider Network, Inc. v. Super. Ct.* (2008) 158 Cal.App.4th 1146, 1152, internal quotes & citations omitted; see also *SWAB Financial, LLC v. E*Trade Securities, LLC* (2007) 150 Cal.App.4th 1181, 1199-1200, internal quotes omitted [after imposing stay pursuant to CCP section 1281.4, “the trial court’s power to interfere in the pending arbitration was strictly limited,” as “the action at law sits in a twilight zone of abatement with the trial court retaining merely vestigial jurisdiction over matters submitted to arbitration”].)

The instant motion for leave to amend to address the claim against Defendants Natasha Benesch and Sameer Dang (parties who have not yet been ordered to arbitration) does not affect the arbitrator’s jurisdiction over Plaintiffs’ claims against Defendants Elite Group Property Inspection Service, Inc. and Don McMahon in any way. Therefore, granting the instant motion would not violate the stay under Code Civ. Proc. § 1281.4.

According to the joint statement filed by Plaintiffs and Defendants Elite Group Property Inspection Service, Inc. and Don McMahon, the initial management conference for the arbitration ordered by the Court has not taken place. (ROA 171.)

Plaintiffs now have a pending motion to compel against Defendants Natasha Benesch and Sameer Dang to “coordinate a comprehensive ADR process involving all parties.” (ROA 167.) That motion is scheduled for hearing on November 25, 2026.

Code Civ. Proc. § 473

Plaintiffs’ motion relies on Code Civ. Proc. § 473(b), which provides in pertinent part,